

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Faria Tasnim	Team: Squad #5	CCRB Case #: 201905046	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/05/2019 12:56 AM	Location of Incident: Paulding Avenue and East 217th Street	Precinct: 47	18 Mo. SOL 12/5/2020	EO SOL 7/22/2021	
Date/Time CV Reported Tue, 06/11/2019 1:18 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 06/11/2019 1:18 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Shawn Morris	10616	955222	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Genesis Figuereo	15264	966053	047 PCT
2. POF Maura Delohery	08461	966025	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Shawn Morris	Abuse: Police Officer Shawn Morris searched the vehicle in which § 87(2)(b) was an occupant.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On June 11, 2019, § 87(2)(b) filed this complaint on the CCRB's website.

On June 5, 2019, at approximately 12:56 a.m., in the vicinity of Paulding Avenue and East 217th Street in the Bronx, § 87(2)(b) was driving his vehicle with a temporary New Jersey license plate displayed inside the back windshield of the vehicle. Police Officer Shawn Morris of the 47th Precinct stopped the vehicle, and arrested § 87(2)(b) on suspicion of possessing a forged plate. PO Morris then brought § 87(2)(b) and the vehicle to the 47th Precinct stationhouse, and subsequently searched § 87(2)(b)'s vehicle (**Allegation A: Abuse of Authority, § 87(2)(g)**). After conducting further investigation and determining that § 87(2)(b)'s plate was valid, PO Morris voided § 87(2)(b)'s arrest and issued him a summons § 87(2)(b).
§ 87(2)(g), § 87(4-b)

The investigation obtained BWC footage of this incident (BR01-03, summarized in BR04). All references to video evidence below refer to the time stamp in the video player, not the on-screen clock embedded in the video itself.

This case was reassigned from Inv. Andrew Ridge to Inv. Faria Tasnim on March 13, 2020.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Shawn Morris searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) had displayed his temporary New Jersey license plate inside the back windshield of his vehicle prior to PO Morris stopping him. It is further undisputed that PO Morris arrested § 87(2)(b) escorted him to the stationhouse, and then searched § 87(2)(b)'s vehicle in the vicinity of the stationhouse.

In his CCRB testimony, § 87(2)(b) recounted that, prior to the incident, he had bought his vehicle in New Jersey, but subsequently lost the temporary license plate from the dealer (BR07). He obtained a new license plate with a different number and taped it inside the back windshield of the vehicle due to an issue with the screws for the license plate. At the time of the incident, § 87(2)(b) had with him two registrations, for the lost original license plate and for the new license plate. After PO Morris stopped his vehicle, § 87(2)(b) provided him with one of the two registrations.

PO Morris testified that he stopped § 87(2)(b)'s vehicle upon observing that § 87(2)(b) had improperly displayed his license plate, such that the expiration date at the bottom of the plate was obscured, and also because the vehicle windows were tinted (BR08). After stopping § 87(2)(b) and examining the license plate, PO Morris saw that the 30-day temporary plate bore an expiration date more than 30 days after its issue date, which led him to believe that the plate was forged. § 87(2)(b), § 87(2)(a) 160.50

After placing § 87(2)(b) under arrest, PO Morris brought § 87(2)(b) and the vehicle to the stationhouse. PO Morris confirmed in his testimony that it was standard procedure to search a vehicle if officers had brought it back to the stationhouse as part of an investigation. PO Morris searched the entirety of § 87(2)(b)'s vehicle because he suspected that § 87(2)(b)'s temporary

license plate was forged. He further suspected that the vehicle was not registered, as a result of it having a forged plate.

Once at the stationhouse, PO Morris was able to contact the New Jersey State Troopers. They agreed that the date on the temporary plate was strange, but they confirmed that it appeared to be valid in their system. As a result, PO Morris voided the arrest and issued § 87(2)(b) a summons for § 87(2)(b)

As established by People v. Belton, 55 N. Y. 2d 49 (1982), warrantless vehicle searches are permitted incident to an arrest when circumstances give reason to believe that the vehicle may be related to the crime for which the arrest is being made (BR09).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR11).
- PO Shawn Morris has been a member of service for six years and has been a subject in four CCRB complaints and eight allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On March 30, 2020, the investigation requested a copy of any Notice of Claim filed with the NYC Comptroller's Office in regard to this incident. The response to this request will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 5

Investigator:	<u>DG</u>	<u>IM Giansante for Inv. Tasnim</u>	<u>May 15, 2020</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>May 15, 2020</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date